PERFORMANCE WORK STATEMENT (PWS)
MISSOURI RIVER RECOVERY IMPLEMENTATION COMMITTEE
CHAIR PROFESSIONAL SERVICES
US ARMY CORPS OF ENGINEERS (USACE)
MISSOURI RIVER RECOVERY PROGRAM (MRRP)

1.0 General Information.

1.1 Background. In 2006 at the request of USACE and other agencies in the Basin, the U.S. Institute for Conflict Resolution conducted a situation assessment regarding the feasibility of a collaborative forum in the Missouri River Basin to advise the agencies on species recovery issues and their impacts to Basin interests. Based on the findings of the assessment, USACE and other federal agencies in the Basin asked the U.S. Institute to convene a multi-party stakeholder group to develop a charter for such a group. The charter drafting process began in 2007 and the final charter for MRRIC was approved by USACE in July 2008 and is available at https://www.nwo.usace.army.mil/mrrp/mrric/.

The Missouri River Recovery Implementation Committee (MRRIC) was authorized by Congress in Section 5018 of the 2007 Water Resource Development Act (WRDA) to serve as a basin-wide collaborative forum to come together and develop a shared vision and comprehensive plan for Missouri River recovery and mitigation plan. The MRRIC is a Federal Advisory Committee Act (FACA)-exempt, multi-stakeholder body composed of representatives from federal, state, and tribal agencies, and nongovernmental and local governmental stakeholder interests in the basin. The MRRIC consensus-building process is a coordinated effort involving the USACE, U.S. Fish and Wildlife Service (FWS), and the Contracted Committee Chair (Contractor/Chair), in addition to approximately 140 Committee members and their alternates.

The Chair's primary role is to support the diverse Committee members in enabling members to articulate their underlying interests and perspectives and formulate consensus-based recommendations to the lead agency, so that the lead agency can make informed decisions with a full picture of basin-wide interests. The Chair should have enough knowledge about the endangered and threatened species, and their Missouri River habitat needs to follow technical discussions, and ensure MRRIC discussions are within the scope of the USACE Missouri River Recovery Program (MRRP) and Section 5018 of the 2007 WRDA. At the same time, the Chair should demonstrate process-oriented knowledge in order to partner with the meeting facilitators and lead agency and be familiar with multi-party consensus building. The Chair should communicate this information in a manner that reinforces Committee members (stakeholder, tribe, state, federal members) trust in the Chair's ability to be an impartial leader, given that Committee members have multiple views on management of the Missouri River.

The Chair should have personal, technical, and professional skills and abilities to maintain and bolster the trust in the collaborative process that has been forged among the Committee members and between the Committee members, lead agency, and the Chair.

1.2 Scope of Work. This is a services contract to provide MRRIC Chair professional services, in close coordination with MRRIC, the lead agency, and one or more meeting facilitators. Services include supporting the diverse Committee members as an impartial leader in enabling members to articulate their underlying interests and perspectives and help the Committee formulate consensus-based recommendations to the lead agency as it relates to the USACE MRRP and assist the USACE in planning and leading constructive MRRIC engagements.

This is a fixed priced, performance-based service contract where the government defines and measures desired outcomes.

1.3 Period of Performance. The period of performance shall be for six (6) months from:
Date of award for a period of 6 months and two (2) three-month options.

1.4 Contractor Personnel

1.4.1 The contractor shall perform all work under this contract using the contractor's own forces except as provided in Paragraph 1.4.2 Subcontracting. Employees who perform this work shall be qualified persons on the contractor's

own payroll.

1.4.2 Subcontracting. The contractor shall not subcontract any work without written approval of the Contracting Officer. Compliance with the provisions of this contract by subcontractors shall be the responsibility of the contractor.

1.5 Quality Control

1.5.1 The contractor shall designate, in writing, an employee who shall serve as the contact for matters involving quality and performance or nonperformance of the required work stated in this PWS. The employee(s) shall be qualified and fully competent with full authority to act for, and on behalf of, the contractor as necessary to ensure that the required work is performed in accordance with the standards contained herein. The contractor shall furnish the above written designation to the Contracting Officer Representative (COR) no later than the first day of work. The contractor shall include the name(s), address(s), and telephone number(s) of the responsible individual(s).

1.5.2 The Contracting Officer reserves the right to disapprove any individual whom he considers incompetent to perform the work required. The Contracting Officer will provide a written notice of any disapproval to the contractor.

1.6 Quality Assurance. The government will utilize the methods stated in Section 6 of the PWS to ensure that the Contractor is performing the services required by this PWS in an acceptable manner. The Government may use Quality Assurance Evaluators (QAE(s)) to provide assistance with the quality assurance methods.

1.6.1 The government has the right to inspect all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The government shall perform inspections in a manner that will not delay the work.

1.6.2 If any of the services do not conform to contract requirements, the government may require the contractor to perform the services in conformity with contract requirements and at no increase in cost. If the contract requirements are not met after a second attempt the government may (1) require the contractor to take necessary action to ensure that future performance conforms to contract requirements and (2) reduce the contract price to reflect the reduced value of the services performed.

1.6.2.1 Upon verification of a validated customer complaint or corrective action report, the COR will notify the contractor that they are required to re-perform specific services.

1.6.3 The government may take action, if the contractor fails to perform the services again or to take the necessary action to ensure future performance is in conformity with the contract requirements. The government may (1) by contract, or otherwise, perform the services and charge to the contractor any cost incurred by the government that related to the performance of such service or (2) terminate the contract in whole or in part

1.6.4 The contractor is responsible to replace/repair any damage to government property due to negligence, at the contractor's own cost. The government may take action, if the contractor fails to replace/repair any damage to government property. The government may (1) by contract, or otherwise, replace/repair damaged government property and charge to the contractor any cost incurred by the government to replace/repair any damage.

1.7 Hours of Operation. The contractor is responsible for conducting business, between the hours of 0800-1700 Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The Contractor must maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.8 Pre-Work Meeting. Prior to commencing any activities, the contractor shall arrange a Pre-work Meeting with the COR and PM. The Meeting shall discuss the work requirements, scheduling, and submittal process. At least one (1) week prior to commencing work, the Contractor shall coordinate their proposed work schedule with the PM and COR.

1.9. Submittals. Prior to commencement of services, the Contractor shall submit the following documents to the

COR for review and approval:

a. List of who will perform work on this contract;

b. Proof of Insurance for Contractors and Subcontractors

1.10 Standards and Regulations. The Contractor shall perform to the standards in the contract and comply with all Local, State, and Federal Regulations during the services performed. The Contractor is responsible for ascertaining the extent to which these regulations affect the operations resulting from this contract. The Contractor shall comply will all applicable regulations. Applicable regulations include, but are not limited to the following:

a. Code of Federal Regulations (CFR), Title 36, Chapter III, Part 327, Rules and Regulations Governing Public Use on Corps of Engineers Water Resource Development Projects EP 1165-2-316 (http://www.publications.usace.army.mil/Portals/76/Publications/EngineerPamphlets/EP_1165-2-316.pdf?ver=2013-08-22-104526-670)
b. Engineering Manual (EM) 385-1-1 (USACE – Safety and Health Requirements Manual), dated March 2024; https://www.publications.usace.army.mil/USACE-Publications/Engineer-Manuals/u43544q/333835/
c. Occupational Safety and Health Standards (29 CFR 1910);

1.11 Physical Security

1.11.1 The contractor shall be responsible for safeguarding all government facilities, property, and materials provided for contractor use. The contractor shall secure at all times all government facilities, property, and materials. Specific security conditions may change based on threats to national defense, and based on the risk of specific facilities to these threats. The contractor shall abide by these changing conditions at all times, as applicable.

1.12 Antiterrorism/Operation Security Requirements

1.12.1 Access and General Protection/Security Policy and Procedures. **General security requirements and guidance:** The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures—this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.12.2 Suspicious Activity Reporting training (e.g. iWATCH, CorpsWatch, or See Something, Say

Something): All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

1.12.3 Pre-screen candidates using E-Verify Program: Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (https://www.e-verify.gov/) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

1.13 Payment

1.13.1 The government will make payment monthly after the government has inspected and accepted the services, and the government has reviewed, approved, and processed the contractor's invoice. The contractor shall submit the invoice to the COR and/or the USACE project manager (PM) to receive the invoice.

1.13.2 The contractor must provide the contractor's name, address, contract number, period of services completed *(i.e., for the month of January or for the period of performance of January 1 through February 23)*, CLIN number and specific quantities of work performed *(i.e., 1 Month, 40 days, 100 acres, etc.*), and total requested, for an invoice to be considered proper. The contractor shall submit the invoice by the fifth (5th) of the month for services completed the previous month or submit the invoice upon completion of all services, in accordance with the period of performance stated in the CLIN.

2.0 Definitions. The following definitions and descriptions apply wherever the word(s) or phrase(s) is/are stated in this PWS:

Acceptable Level of Performance (ALP): The maximum percent defective, the maximum number of defects per hundred units, or the number of defects in a lot considered satisfactory on average. The allowable leeway or variance from a standard before the government will reject the specific service.

Contracting Officer's Representative (COR): means an individual designated an authorized in writing by the Contracting Officer to perform specific technical or administrative functions.

Performance-Based Contract (FAR 2.101): Structuring all aspects of an acquisition around the purpose of the work to be performed with the contract requirements set forth in clear, specific, and objective terms with measurable outcomes as opposed to either the manner by which the work is to be performed or broad and imprecise.

Performance Requirements Summary (PRS): The PRS shows contract requirements, the component requirements related to each contract requirement, the price of each work requirement as a percentage of the associated contract requirement (Fixed Price Contracts), the standard of performance, and the acceptable level of performance (ALP) for each work requirement.

Quality Assurance Surveillance Plan (QASP): An organized written document used by the Government for quality assurance surveillance. Document contains sampling/evaluation guides, checklists, and the performance requirements summary (PRS).

3.0 Government Furnished Items and Services

3.1 Services. N/A

3.2 Facilities. N/A

3.3 Utilities. N/A

3.4 Equipment. N/A

3.5 Materials. N/A

4.0 Contractor Furnished Items and Responsibilities

4.1 General. The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

5.0 Specific Tasks

The primary objectives of this contract are to:

- Support the focus of MRRIC dialog at all meetings on the stated goals and purposes of MRRIC
    - Support the diverse Committee members as an impartial leader in enabling the members to articulate their underlying interests and perspectives and formulate consensus-based recommendations to the lead agency as it relates to the USACE Missouri River Recovery Program
    - Assist with plenary agenda development, MRRIC engagements, and help enforce the MRRIC charter and operating procedures
    - Use structured decision-making practices and multi-party consensus building to enable Committee members to communicate their interests as it relates to the USACE Missouri River Recovery Program and the Adaptive Management Plan

5.1 <u>Task 1 – MRRIC Chair Attended Meetings</u>

All meetings and webinars should be limited to the number listed in Section 5 for each task. Any meetings or webinars involving the MRRIC Chair that are not listed in Section 5 of this PWS require prior authorization from the COR. Over the course of the contract, the contractor shall attend and participate in the following meetings:

BASE:

- MRRIC Plenary (February 2027, Omaha, NE) – (Chair-led; 2.5 days meeting and 2 days travel)
    - Includes attendance at, and chairing, MRRIC Plenary Meeting, as well as participating in a plenary Lead Agency (LA)/Lead Facilitation Team (LFT) debrief. Includes ensuring that the focus of MRRIC deliberations is consistent with the MRRIC charter and USACE Missouri River Recovery Program, and that MRRIC members follow their operating procedures and ground rules.

- MRRIC Plenary Meeting Preparation (40 hours)
    - Work with the meeting facilitator and USACE MRRIC Project Manager (PM) to plan and conduct the MRRIC plenary meeting. Includes providing scheduling input, input on needed meeting materials, input on agenda development, drafting and finalizing USACE-approved agendas and materials, and providing review and comment on draft meeting documents developed by others (including the meeting summary prepared by the meeting facilitator).

OPTION 1:

- None

OPTION 2:

- MRRIC Plenary (December 2027, Omaha, NE) – (Chair-led; up to 2.5 days meeting and 2 days travel)
    - Includes attendance at, and chairing, MRRIC Plenary Meeting, as well as participating in a plenary LA/LFT debrief. Includes ensuring that the focus of MRRIC deliberations is consistent with the MRRIC charter and USACE Missouri River Recovery Program, and that MRRIC members follow their operating procedures and ground rules.

- MRRIC Plenary Meeting Preparation (40 hours)
    - Work with the meeting facilitator to plan and conduct MRRIC plenary meeting. Includes providing scheduling input, input on needed meeting materials, input on agenda development, drafting and finalizing USACE-approved agendas and materials, and providing review and comment on draft meeting documents developed by others (including the meeting summary prepared by the meeting facilitator).

5.2 <u>Task 2 – MRRIC Chair Calls/Webinars:</u>

BASE:

- Committee Work Group Calls (5 calls, 1 hour each)
    - Attendance at Work Group Calls/Webinars, not including Agenda Work Group Call(s); includes providing input to meeting organizers and Points of Contact, if requested, on the call agenda (electronic) and one (1) round of review and comment on draft meeting summary(ies) (electronic) if needed.
    - For each Work Group, if needed, the Contractor shall engage the applicable Planning Group in a preparation call or email to discuss potential agenda topics for Work Group calls (3 calls, 1 hour each)

- Agenda Work Group Call(s) (Chair-Led, 2 calls, 1 hour each)
    - Assist in the development of plenary agenda(s) (electronic) by convening Agenda Work Group Call(s); includes two (2) rounds of review and comment on electronic draft version(s) of agenda sketches and agenda(s) prepared by meeting organizers and lead agencies and working with the meeting organizers to plan the call(s) and identify action items.

OPTION 1:

- Committee Work Group Calls (3 calls, 1 hour each)
    - Attendance at Work Group Calls/Webinars, not including Agenda Work Group Call(s); includes providing input to meeting organizers and Points of Contact, if requested, on the call agenda (electronic) and one (1) round of review and comment on draft meeting summary(ies) (electronic) if needed.
    - For each Work Group, if needed, the Contractor shall engage the applicable Planning Group in a preparation call or email to discuss potential agenda topics for Work Group calls (2 calls, 1 hour each)

OPTION 2:

- Committee Work Group Calls (3 calls, 1 hour each)
    - Attendance at Work Group Calls/Webinars, not including Agenda Work Group Call(s); includes providing input to meeting organizers and Points of Contact, if requested, on the call agenda (electronic) and one (1) round of review and comment on draft meeting summary(ies) (electronic) if needed.
    - For each Work Group, if needed, the Contractor shall engage the applicable Planning Group in a preparation call or email to discuss potential agenda topics for Work Group calls (2 calls, 1 hour each)

- Agenda Work Group Call(s) (Chair-Led, 2 calls, 1 hour each)
    - Assist in the development of plenary agenda(s) (electronic) by convening Agenda Work Group Call(s); includes two (2) rounds of review and comment on electronic draft version(s) of agenda sketches and agenda(s) prepared by meeting organizers and lead agencies and working with the meeting organizers to plan the call(s) and identify action items.

5.3 <u>Task 3 – MRRIC Webinars</u>

BASE:

- All-MRRIC Webinars (1 webinar, 4 hours)
    - Includes scheduling input, attendance and participation in all-MRRIC webinar(s), and one (1) round of review and comment on draft meeting summary(ies) (electronic) if prepared by meeting facilitator and/or lead agency. May include facilitation role of meeting. Webinar shall be conducted via Microsoft Teams or Zoom.
- Webinars for Lead Agency / Leadership and other purposes (1 webinar, 1 hour)

- Includes scheduling input, agenda input, and attendance and participation in Lead Agency / Leadership Webinars.
- AM Workshop Webinar (1 webinar, 16 hours)
  - Attendance at the AM Workshop Webinar

OPTION 1:

- All-MRRIC Webinars (1 webinar, 4 hours)
  - Includes scheduling input, attendance and participation in all-MRRIC webinar(s), and one (1) round of review and comment on draft meeting summary(ies) (electronic) if prepared by meeting facilitator and/or lead agency. May include facilitation role of meeting. Webinar shall be conducted via Microsoft Teams or Zoom**.**

OPTION 2:

- Fall Science Webinar (1 webinar, 16 hours)
  - Attendance at the MRRP Fall Science webinar.

5.4 <u>Task 4 – MRRIC Chair – Other Functions</u>

BASE:

- MRRIC Project / Issue Management (40 hours)
  - Project and issue management (including, but not limited to, coordination and conveyance associated with the MRRIC Member Selection Process, conveyance of MRRIC's consensus recommendations to the lead agency, and resolving disputes among Committee members).

OPTION 1:

- MRRIC Project / Issue Management (20 hours)
  - Project and issue management (including, but not limited to, coordination and conveyance associated with the MRRIC Member Selection Process, conveyance of MRRIC's consensus recommendations to the lead agency, and resolving disputes among Committee members).

OPTION 2:

- MRRIC Project / Issue Management (20 hours)
  - Project and issue management (including, but not limited to, coordination and conveyance associated with the MRRIC Member Selection Process, conveyance of MRRIC's consensus recommendations to the lead agency, and resolving disputes among Committee members).

5.5 <u>Task 5 – Reports</u>

BASE:

- Annual Work Plan Development and Check-in Calls (1 report, 36 hours)
  - Development of MRRIC annual Work Plan. May involve coordination calls with the USACE, conferring with workgroup Points of Contact and other MRRIC members as needed. Includes lead role in writing work plan. One copy of draft work plan (electronic) shall be distributed to USACE, work group POCs and facilitation team for one (1) round of review and comment. One copy of final draft work plan (electronic) shall be delivered to USACE and facilitation team for distribution to MRRIC members.

- Annual MRRIC Report (1 report, 40 hours)
  - Production of MRRIC Annual Report that serves to update MRRIC members; Includes lead role in writing report and summarizing MRRIC engagements, activities, and accomplishments for the prior calendar year. Includes distribution of one (1) draft report (electronic) for one (1) rounds of review and comment by USACE and facilitation team if needed.

6.0 Performance Requirements Summary. The contractor service requirements are summarized into performance

objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	PWS Para.	Performance Standard	Performance Threshold	Method of Assessment
PRS #1 **In-person presence** **MRRIC Plenary Meeting**	5.1	Personal attendance at MRRIC Plenary meeting	Must participate in meeting preparation and attend all meetings SOW allows	Review Sign-in sheets at each meeting
PRS #2 **Participate in workgroup calls and webinars**	5.2	Participation in workgroup calls and webinars	Must attend all workgroup calls and webinars. Must notify MRRIC vice-chair and USACE MRRIC PM if unable to attend	Review attendance logs for calls/webinars
PRS #3 **MRRIC Webinars**	5.3	Participation in webinars	Must attend all MRRIC webinars. Must notify MRRIC vice-chair and USACE MRRIC PM if unable to attend	Review attendance logs for webinars
PRS#4 **Other Functions**	5.4	Project management and	Respond to all formal Committee and USACE inquiries within 5 business days	Review and approval by PM
PRS#5 **Reports**	5.5	Development of draft Annual Work plan and Annual MRRIC Report	Submittal of one draft Annual Work plan electronically in the first two months ~~quarter~~ of the ~~fiscal year~~ calendar year, with no more than one round of government revisions. Submittal of one annual MRRIC report electronically. Submit draft report by 31 January 2027 with no more than one round of government revisions required for final approval	Review and approval by PM

7.0 Attachments

None